of the Constitution, to become its master. Second, the limited amending power was itself a basic feature of the Constitution. Following the court's decision in the Kesavananda case, Parliament had no authority to disturb that feature. Third, by stating that no court would have the power to pronounce upon the validity of a constitutional amendment, the amendment damaged the balance of power between the judiciary and Parliament.

Palkhivala used the Minerva Mills case as a platform to challenge another Emergency-era amendment to the Constitution. The Congress government had secured an amendment to Article 31C of the Constitution which protected from the scrutiny of two fundamental rights (the rights to equality and freedom) all laws that gave effect to any of the directive principles under the Constitution. In other words, no law that gave effect to one or more of the directive principles could be struck down by a court on the basis that it violated, say, the right to freedom of speech or the right to equality.

Palkhivala's argument against this amendment was based on principle and pragmatism. Article 31C embodied the 'quintessence of authoritarianism': the difference between authoritarianism and democracy was that 'the former subordinates human freedoms to directive principles of state policy, while the latter achieves the same objectives while respecting human freedoms'.[14] In practical terms, to limit Article 31C to laws that gave effect to directive principles was meaningless, as the directive principles covered the whole spectrum of governance. Almost every law enacted by the government could be associated, in one way or another, with a directive principle.

By the time the Minerva Mills case arose for hearing, Morarji Desai's Janata Party government had fallen and a 'caretaker' government (led by Prime Minister Charan Singh) was in place until the conclusion of the next general elections. Attorney General L.N. Sinha and Additional Solicitor General K.K. Venugopal argued the case on behalf of the government. In Sinha and Venugopal, Palkhivala faced formidable opposing counsel. Sinha was a stalwart of the bar who was 'hero-worshipped'[15] by young lawyers at